

STATE OF MICHIGAN JUDICIAL CIRCUIT COUNTY	COUNTERCLAIM FOR DIVORCE WITH CHILDREN	CASE NO. and JUDGE
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Court address

Court telephone no.

Plaintiff's name
Plaintiff's name before marriage

v

Defendant's name
Defendant's name before marriage

I state:

1. The defendant or plaintiff has resided at least 180 days in Michigan immediately before the filing of this complaint.
2. The defendant or plaintiff has resided in this county at least 10 days immediately before the filing of this complaint.
3. The marriage took place on _____ in _____ .

Date
Location
4. The defendant and plaintiff ☐ separated on _____ . ☐ still live together.

Date
5. There has been a breakdown of the marriage relationship to the extent that the objects of matrimony have been destroyed and there remains no reasonable likelihood that the marriage can be preserved.
6. ☐ The plaintiff ☐ The defendant ☐ No party is pregnant.
7. The defendant and plaintiff have minor children together. The complete name and age of each child is:

8. _____ is/are fit and proper to make major decisions regarding
Defendant or plaintiff or both parties
 the minor child(ren) of the parties, and it is in the best interests of the child(ren) to award _____ legal custody of the
Type
 child(ren) to _____ .
Defendant or plaintiff or both parties
9. _____ is/are fit and proper to have care, custody, and control of
Defendant or plaintiff or both parties
 the minor child(ren) of the parties, and it is in the best interests of the child(ren) to award _____ physical custody of
Type
 the child(ren) to _____ .
Defendant or plaintiff or both parties
10. It is in the best interests of the child(ren) to award parenting time to _____
Defendant or plaintiff or both parties
 as follows:

11. The minor child(ren) need financial support, including health and hospitalization insurance, other medical support, and child care expenses, and child support and other expenses should be calculated and ordered according to the Michigan Child Support Formula.
12. ☐ a. The defendant and plaintiff did not acquire property or debts during the marriage.
☐ b. The defendant and plaintiff acquired property and/or debts during the marriage that are to be equitably divided between them.
☐ c. The plaintiff and defendant acquired property and/or debts during the marriage. The parties have reached an agreement regarding the division of property and/or debts.
13. ☐ The defendant does not need spousal support. **OR**
☐ The defendant needs spousal support and the plaintiff is able to provide spousal support. See attachment.

I REQUEST:

- a. A judgment of divorce.
- b. _____ be given _____ legal custody of the minor child(ren).
Defendant or plaintiff or both parties
- c. _____ be given _____ physical custody of the minor child(ren).
Defendant or plaintiff or both parties
- d. Parenting time as specified in this counterclaim.
- e. Child support, including medical and child care expenses as calculated according to the Michigan Child Support Formula.
- f. The parties be ordered to provide health and hospitalization insurance for the minor child(ren) and to pay medical, dental, orthodontic, and hospital expenses not covered by insurance, both permanently and while this action is pending.
- ☐ g. An equitable division of property and debts.
Note: Property may include real estate, pensions, insurance, retirement accounts, and investment accounts, among others.
- h. An equitable division of the costs of this action.
- ☐ i. My last name be changed to _____ .
- j. Any other relief that the court deems just and equitable.

I declare under the penalties of perjury that this counterclaim has been examined by me and that its contents are true to the best of my information, knowledge, and belief.

Date

Defendant's signature